

Court No. - 39

Case :- WRIT - C No. - 1770 of 2019

Petitioner :- Yadu Nath Parashar

Respondent :- State Of U P And 3 Others

Counsel for Petitioner :- Vinay Kumar Tripathi

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble B. Amit Sthalekar,J.

Hon'ble Mrs. Manju Rani Chauhan,J.

Heard Sri Vinay Kumar Tripathi, learned counsel for the petitioner, Sri Kamal Kumar Kesarwani counsel holding brief of Sri Baleshwar Chaturvedi, learned counsel for the respondent no.4 and the learned Standing Counsel for Respondents no. 1, 2 and 3.

The petitioner in the writ petition is seeking quashing of the recovery proceedings initiated in pursuant to the provisional assessment report dated 18.01.2016 (Annexure no.3 to the writ petition) for recovery of Rs. 1,27,044/-.

According to the petitioner, against the assessment order, he has preferred the representation under Clause 8.1(b) of the Electricity Supply Code, 2005 before the respondent no.4- Executive Engineer, Rural Vidhyut Vitaran Corporation Ltd., Mathura Cantt., copy of which has been filed as Annexure no.4 to the writ petition but there is no receiving.

No useful purpose would be served in keeping this writ petition pending.

This writ petition is disposed of with a direction that if the petitioner appears before the respondent no. 4-Executive Engineer, Rural Vidhyut Vitaran Corporation Ltd., Mathura Cantt. on 31.1.2019 at 11 a.m. personally with the certified copy of this order alongwith copy of his representation (Annexure no.4 to the writ petition), the respondent no. 4 shall provide an opportunity of hearing to the petitioner and decide the representation of the petitioner in accordance with law within a further period of fifteen days.

Subject to the petitioner complying with the direction given hereinabove, the recovery in pursuance of the impugned proceedings in pursuance of provisional assessment report dated 18.01.2016 shall remain in abeyance and shall be subject to any final order which may be passed by the respondent no.4.

It is made clear that the court has not adjudicated the claim of the petitioner on merit.

Order Date :- 21.1.2019
JK Yadav